



Speaker 1 - 00:00

Two half credits in the first semester. However, I do wanted to point out to the court that Amira has been going to summer school and she's attended every day. So that's a positive and it's a good sign to see. Amira is frustrated, as with the agency, about why she can't go back and live with her mother. And we've explained to her on numerous occasions the reason why, that it's just hard for her to accept that she can't go back, she can't go stay with her mother. We're having monthly contact and go to mom's house every month. Knock on the door, nobody replies. I've left the card and left numerous letters there. Mom has. I've had phone conversations with her.



Speaker 1 - 00:47

But she's in the same position where she's requiring DHS to retract everything that's set at the shelter because she believes that she was defamed and the agency lied about her and she does not want anything to do with the agency until we retract everything that was said about her in the shelving here. Ms. Penn has had contact not with only my program manager, but with the district manager and there's nothing anybody can do. And it's between a rock and a hard place as a case where there's agency policy and OERs. And mum is just hard fast saying that I'm not going to engage with you until you do. And she has a list of expectations and recommendations she wants NHS to do, which we can with regards to Amira looking for moving forward.



Speaker 1 - 01:42

We're waiting for the hearing, the criminal hearing with dad so that he can get his legal issues resolved. We have engaged. There's a lady by the chair, name of Chelsea Ulgeron. She's with the family search and Engagement specialist with Catholic Community Services. And what we're trying to locate is any family member who might be willing to be a placement for Elnira if is a negative result with regards to dad and his criminal charges. Other than that, I don't think we have anything else to add you on.



Speaker 2 - 02:26

Thank you. This is Emily Schultz in Judge Rooney's courtroom. We have a call in user on the Webex phone number 971 ending in 01. Please dial star6 to unmute yourself and state your name and how you're related to the case.



Speaker 3 - 02:43

Yes, thank you. Yes, good morning. This is mother Ashley Penn. I apologize, Judge Rooney. The Webex app is downloading. My camera of course is on the fritz on my laptop. So I Will be visually present in just a moment. But while that downloads, I didn't want to not be able to engage with the court, so I dialed in as well, just to make sure I was present. Oh, and again, Ashley Penn. Mother.



Speaker 2 - 03:15

Okay, thank you, Ms. Muls.



Speaker 4 - 03:18

Your Honor, may I duck out in the hall and see if father's arrived? I think I heard somebody come in.



Speaker 2 - 03:22

You may.



Speaker 3 - 03:35

Your honor may ask a question? Really,.



Speaker 2 - 03:41

Miss Moles? No. I mean, he usually comes to court, so it's surprising to me.



Speaker 4 - 03:47

Comes to court, so it is a surprise to me as well. I don't have anything additional to add. I know the criminal case has been weighing heavily, and with that coming up in just a couple weeks, I'm sure that's heavy on his mind at this point.



Speaker 2 - 03:59

And do you have any information, if this is a double set trial, what the odds are of it going out? I just know this

young lady needs some answers.



Speaker 4 - 04:09

I. I know it's already been reset, and so I would hope that it would be a priority for the court to hear at this point, so. But I don't have any other independent information about that. All right,.



Speaker 2 - 04:23

Ms. Penn, you do not have counsel. You can provide me with a brief update around your circumstances.



Speaker 3 - 04:33

Yes, yes.



Speaker 2 - 04:36

Okay. You can have both connections up. It creates a feedback, so pick one. And I'm. I don't care which one at this point in time. But you just have one open phone or computer. Because you're feedbacking. That's not a verb. Okay, Ms. Penn.



Speaker 3 - 05:11

Okay. Can the court hear me now?



Speaker 2 - 05:12

It can, yes.



Speaker 4 - 05:13

Hello.



Speaker 3 - 05:14

I. I keep. I keep trying to unmute myself, and I'm Keep getting muted again without me muting myself. So I don't. I'm not doing that. But thank your honor, for the opportunity to speak. I do want to put on the record. I understand you want a brief synopsis. I haven't had the opportunity to engage with this court. I have attempted to appear either through my written filings or through a virtual or remote appearance as per the Chief Justice Order 23 028, that I would like the court to take judicial notice of because I have been prevented from. Ms. Penn?



Speaker 2 - 05:50

Ms. Penn? Ms. Penn.



Speaker 3 - 05:53

Yeah.



Speaker 2 - 05:54

You're going to tell me about your current circumstances? That's what you're going to tell me about? You're not going to tell me what.



Speaker 3 - 05:59

You want me to do right now? No, no, I. I wasn't. I'm not telling you what to do, your honor. But I do believe that I have the opportunity to keep. To Make a record and preserve a record. And so if I could be afforded the opportunity to be heard, as this court has maintained this case for more than 10 months, and I have not had an opportunity to put on anything.



Speaker 2 - 06:23

You have had every opportunity to appear in court, and you have refused each and every time.



Speaker 3 - 06:28

And I have. No, your honor, I have not. Per Organ Statute 419B, a parent is permitted to appear through a written filing, and as a matter of fact, it's the default method. And I have appeared through every. And.



Speaker 2 - 06:43

And Ms. Penn, I have ruled on every one of your filings that were properly filed. Those I have ruled on. So, Ms. Penn, tell me what you want me to know factually. Tell me what you want to know factually. If you're going to be argumentative, I will expel you from the courtroom. Take your pick.



Speaker 3 - 07:02

This is not argumentative, your honor. I have the right to be heard. If I could please be heard.



Speaker 2 - 07:08

You can tell me what is going on.



Speaker 3 - 07:13

What is going on, your honor, as I'm trying to make the court aware, is that the agency, since I've spoken with Sonja Faulkner, who is Mr. Miln, just acknowledges his higher up in DHS. She has engaged with me several times over the last five or six months and has committed to bringing me back answer to my question. Not only has DHS failed to serve me, but DHS has failed to identify the conduct of mine that puts Amira at a risk of harm. I do. I've been

prevented from having court records after I requested it from the court, so I don't have access to the petition. But as far as I've been told, the allegations are one or both parents are acting dangerously, and one or both parents lacks the capacity to parent. Well, with that in.



Speaker 3 - 08:11

With that in mind, I, again, for the record, note that the agency has not identified any conduct of mine that suits either of those allegations. And I've been asking consistently. Just recently, David Miln and I had a conversation about two weeks ago, and I asked Mr. Miln, hey, Mr. Miln, how's my progress? Because it's been 10 months. And Mr. Miln says, you know what? You won't let us in your house. And I said, no, that's not true, Mr. Miln, because just in the past year, DHS has interviewed my children in my home for more than two hours. And at my collaboration, I collaborated with the caseworker. She came in, she interviewed the kids, and Amirah was thriving in my home, going to a new school with her siblings. There's has never been an allegation That I cannot and have not provided the minimal.



Speaker 3 - 09:11

What is it called? Reasonably prudent parent standard to my children that.



Speaker 2 - 09:15

That applies to a different.



Speaker 3 - 09:18

Ma'. Am.



Speaker 2 - 09:18

Reasonably prudent parent applies to an appla Program.

Speaker 3 - 09:24



Well, your honor, it's in the. It's in the statute.



Speaker 2 - 09:26

Yes, as to apa. As to appa. You're in the wrong section.



Speaker 3 - 09:30

It's in the juvenile.



Speaker 2 - 09:32

Yes, but you're in the wrong section.



Speaker 3 - 09:34

Bench book.



Speaker 2 - 09:34

You're in the wrong section.



Speaker 3 - 09:36

I don't believe that. I don't. I don't believe that a re. That by my use of the word reasonably prudent parent would violate or offend the statutory scheme that accompanies juvenile dependency because there has to be some identification of parental conduct that bears a nexus to the danger that the agency is asserting that they are protecting this child from. The agency has failed to do that with respect to me.



Speaker 2 - 10:06

Okay, ma'.



Speaker 3 - 10:07

Am. Ten months of the case.



Speaker 2 - 10:09

Okay, Ms. Penn. No, no. You're gonna listen to me. You're gonna listen to me because if you don't, I have the right to expel you from the courtroom, whether it's by webex or in person. You do not interrupt the court. You know better. You know better, Ms. Penn.



Speaker 4 - 10:25

So.



Speaker 2 - 10:25

Nope, you stop and let me finish. Now. The time and place for contesting the jurisdictional allegations has passed. If you want an attorney to file a dismissal motion, you may. We have afforded you the opportunity, and we will again today, if you wish to apply for court appointed attorney to file the paperwork to now argue the dismissal factors. But that is an evidentiary hearing that. I will warn you. An evidentiary hearing on a dismissal requires in person appearance. But if you want an attorney, at no cost to you, to review those and talk about that, all you need to do is fill out the paperwork and mail it back to us. Would you like to do that?



Speaker 3 - 11:15

I understand that, your honor.



Speaker 2 - 11:17

Would you like to do that?



Speaker 3 - 11:18

To that. To that framing? I object to that framing, your honor. If I could state my objection, please.



Speaker 2 - 11:23

Nope. You don't get to object to my framing. So, Ms. Penn, tell me your current circumstances. We are not re. Arguing jurisdiction. If you continue to do that, I will expel you from the web.



Speaker 3 - 11:38

I'm not arguing jurisdiction with you.



Speaker 2 - 11:39

Yes, you are.



Speaker 3 - 11:40

I don't understand, your honor. I'm just going to put this on the record. I'm going to put this on the record. I don't understand why I'm being treated so belligerently. I have not done anything disruptive. I am presenting myself to this court. I am trying to relay a very reasonable and logical frame of circumstances. I haven't done anything that's outside of the procedure. But your honor, is not allowing. Not treating me with the same fairness and impartiality that I would see that I just saw you afford the other parties. You're treating me as if I have offended the court in some way when I'm simply asking to be heard.



Speaker 2 - 12:17

Ms. Penn, I have given you the framework.



Speaker 3 - 12:20

Yes.



Speaker 2 - 12:20

What information you should be presenting to the court.



Speaker 3 - 12:24

And I am, your honor, you are not. Allow me to finish. I would love to be heard if you could allow me to finish. Your honor, I am. Because, Mr. Millman, I's conversation is direct, and you're asking me if I want a lawyer.



Speaker 2 - 12:40

Your honor, do you want a lawyer, yes or no? Do you want a lawyer, yes or no?



Speaker 3 - 12:44

Your honor.



Speaker 2 - 12:45

Do you want a lawyer? Yes or no? Do you want a lawyer, yes or no?



Speaker 3 - 12:49

Your honor, you are.



Speaker 2 - 12:50

All right. Expeller. Okay, Mr. Lansky, what would you like to tell the court?



Speaker 1 - 12:57

Thank your honor. This is an understandably frustrating case for Amira. She's frustrated with every party, including myself, with the limitations that we have set. My statue.